

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**JOINT STATUS REPORT AND MOTION TO
EXTEND EXPERT AND OTHER DEADLINES**

Complainant 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. (“Complainant”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” and, collectively with Complainant, the “Parties”), by their respective undersigned counsel and pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Status Report and respectfully request a two-month extension of the remaining deadlines set forth in the Presiding Officer’s May 22, 2024 Scheduling Order.

I. The Current Schedule

1. The May 22, 2024 Scheduling Order set the following deadlines relevant to this Motion:

- July 19, 2024: Report of Complainant’s experts, if any, to be provided to Respondents.
- July 26, 2024: Respondents to identify rebuttal expert witnesses, if any.
- August 1, 2024: Last date to serve supplemental discovery requests.
- August 15, 2024: Respondents to provide Complainant with rebuttal experts’ reports, if any.
- August 22, 2024: Depositions of expert witnesses may begin.
- September 10, 2024: Close of discovery.
- October 11, 2024: Complainant’s Opening Brief, Proposed Findings of Fact, and Appendix.
- November 11, 2024: Respondents’ Opposition Brief, Proposed Findings of Fact, Appendix, and Response to Complainant’s Proposed Findings of Fact.

- November 26, 2024: Complainant's Reply to Respondents' Brief and Proposed Findings of Fact.

II. Good Cause Exists to Extend the Current Deadlines

A. The Large Number of Depositions Taken and Being Scheduled to Be Taken Makes Completion under the Current Schedule Difficult If Not Impossible

2. The Parties have continued to engage in diligent efforts to meet the existing discovery deadlines without involving the Presiding Officer to amend the scheduling order. Despite those joint efforts, it has become apparent to the Parties that the volume of depositions currently being taken and scheduled to be taken in this case is such that, as a practical matter, there simply are not enough days remaining within the current deadlines for the Parties to complete depositions and other discovery.

3. Depositions in the case have already begun and are ongoing. The Parties are continuing to work to finalize dates with deponents and are coordinating a joint schedule that currently contemplates 21 additional depositions being taken between July 1 and August 6, 2024, with the potential for additional depositions thereafter, as needed, for a total of up to 30 Party employee and former employee depositions, plus the depositions of the Parties' corporate representatives, experts, and any non-party depositions that may be necessary. Even if the Parties already had every anticipated deposition in this case already scheduled and confirmed, the current schedule would (1) pose extraordinary logistical challenges to the undersigned counsel for the Parties and (2) create a situation where the Parties' experts (Complainant's expert, in particular) would be required to complete and submit expert reports *before* substantial amounts of potentially critical fact deposition testimony are available to them.

4. As noted, many of these depositions involve former employees of the Parties and non-U.S. individuals located abroad, and although the undersigned counsel is actively coordinating

with those former employees and individuals to streamline the scheduling and taking of these depositions, some may require subpoenas and the opportunity to respond to such subpoenas.

5. The logistics of scheduling and taking these depositions have taken and will continue to take substantial time, but the Parties are committed to continuing to work collaboratively to complete depositions, expert discovery, and other remaining discovery within the limited 60-day extension requested herein.

6. Therefore, good cause exists to grant the Parties' motion to amend the scheduling order.

B. Complainant Will Be Filing a Motion for Permission to File a Verified Amended Complaint

7. Complainant also anticipates filing a motion for permission to file a Verified Amended Complaint in this case by the week of July 1, 2024.

8. On June 12, 2024, Complainant's counsel sent Respondents' counsel an unverified draft of Complainant's proposed Verified Amended Complaint in connection with a request to change or withdraw the confidentiality designations of certain documents produced in discovery that are quoted, paraphrased, or otherwise referenced in that draft pleading in order to facilitate its public filing without redactions. On June 18, 2024, Respondents' counsel indicated that Respondents would oppose Complainant's motion for permission to file the proposed Verified Amended Complaint and did not agree to changing or withdrawing the confidentiality designations at issue.

9. Although Complainant's forthcoming motion will not halt depositions (which, as noted above, the undersigned counsel are continuing with expeditiously), extending the scheduling order is also appropriate to accommodate this additional motion practice and the potential additional complexity arising from Complainant's proposed Verified Amended Complaint. The

extension requested herein is intended to provide Respondents with adequate time to respond to Complainant's forthcoming motion and, if Complainant's motion is granted, to respond to the Verified Amended Complaint. (Without the requested extension, the current deadline for completing discovery would likely precede Respondents' deadline even to respond to the Verified First Amended Complaint.)

10. For the foregoing reasons, good cause exists to grant the Parties' joint motion to amend the scheduling order to facilitate a more efficient and just resolution to this action.

III. Conclusion

11. The Parties respectfully submit that a two-month extension of the remaining deadlines in the May 22, 2024 Scheduling Order is necessary to allow the Parties a fair opportunity to depose each other's respective fact witnesses and assess any additional discovery that may be needed if Complainant receives permission to file its forthcoming proposed Verified Amended Complaint. An extension of the expert deadlines will also allow the Parties to incorporate relevant information from upcoming depositions into their expert reports. The Parties will endeavor to avoid asking the Presiding Officer for additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

12. The Parties therefore jointly request the following amended schedule:

- September 17, 2024: Report of Complainant's experts, if any, to be provided to Respondents.
- September 24, 2024: Respondents to identify rebuttal expert witnesses, if any.
- September 30, 2024: Last date to serve supplemental discovery requests.
- October 14, 2024: Respondents to provide Complainant with rebuttal experts' reports, if any.
- October 21, 2024: Depositions of expert witnesses may begin.
- November 10, 2024: Close of discovery.
- December 10, 2024: Complainant's Opening Brief, Proposed Findings of Fact, and Appendix.
- January 10, 2024: Respondents' Opposition Brief, Proposed Findings of Fact, Appendix, and Response to Complainant's Proposed Findings of Fact.

- January 26, 2024: Complainant's Reply to Respondents' Brief and Proposed Findings of Fact.

13. Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Expert and Other Deadlines be granted.

Dated: June 28, 2024

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Respectfully submitted,

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